

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                             |                           |                                                       |                                               |                                            |
|--------------------------------------------------|-------------------------------------------------------------|---------------------------|-------------------------------------------------------|-----------------------------------------------|--------------------------------------------|
| Investigator:<br>Stanislav Sazonov               | Team:<br>Team # 4                                           | CCRB Case #:<br>201212317 | <input checked="" type="checkbox"/> Force             | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.              |
|                                                  |                                                             |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Sunday, 09/23/2012 11:35 PM  | Location of Incident:<br>Church Avenue and East 54th Street | Precinct:<br>67           | 18 Mo. SOL<br>3/23/2014                               | EO SOL<br>3/23/2014                           |                                            |
| Date/Time CV Reported<br>Mon, 09/24/2012 9:22 AM | CV Reported At:<br>CCRB                                     | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Mon, 09/24/2012 9:22 AM |                                               |                                            |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |
|                    |      |              |
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |
|             |              |
|             |              |

| Subject Officer(s)        | Shield | TaxID  | Command |
|---------------------------|--------|--------|---------|
| 1. SGT Sean Claxton       | 01500  | 943092 | 067 PCT |
| 2. POM Ali Cheikhali      | 10937  | 946677 | 067 PCT |
| 3. POM Michael Lamoriello | 26048  | 947789 | 067 PCT |
| 4. An officer             |        |        | 067 PCT |

| Witness Officer(s)       | Shield No | Tax No | Cmd Name |
|--------------------------|-----------|--------|----------|
| 1. POM Mark Demarco      | 03456     | 948870 | 067 PCT  |
| 2. POF Maria Voskoboynik | 22535     | 951406 | 067 PCT  |
| 3. POM John Ko           | 30317     | 950695 | 067 PCT  |
| 4. POM Cassidy Tibbets   | 17245     | 951334 | 067 PCT  |
| 5. SGT Abdessama Diany   | 00512     | 938362 | PBBS     |
| 6. POM Adam Giacalone    | 13860     | 945756 | 067 PCT  |
| 7. POM Ashland Menelas   | 14410     | 940466 | 067 PCT  |

| Officer(s)                 | Allegation                                                                                  | Investigator Recommendation |
|----------------------------|---------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Michael Lamoriello | Force: PO Michael Lamoriello used physical force against § 87(2)(b) .                       | A . § 87(2)(g)              |
| B . POM Ali Cheikhali      | Force: PO Ali Cheikhali used physical force against § 87(2)(b) .                            | B . § 87(2)(g)              |
| C . POM Ali Cheikhali      | Force: PO Ali Cheikhali struck § 87(2)(b) with a blunt instrument.                          | C . § 87(2)(g)              |
| D . An officer             | Force: An officer struck § 87(2)(b) with a nightstick.                                      | D . § 87(2)(g)              |
| E . SGT Sean Claxton       | Discourtesy: Sgt. Sean Claxton spoke discourteously to § 87(2)(b) .                         | E . § 87(2)(g)              |
| F . An officer             | Abuse of Authority: An officer threatened § 87(2)(b) and individuals with the use of force. | F . § 87(2)(g)              |

| Officer(s)            | Allegation                                                                                                           | Investigator Recommendation |
|-----------------------|----------------------------------------------------------------------------------------------------------------------|-----------------------------|
| G . SGT Sean Claxton  | Force: Sgt. Sean Claxton used physical force against § 87(2)(b) [REDACTED]                                           | G . § 87(2)(g) [REDACTED]   |
| H . An officer        | Discourtesy: An officer spoke discourteously to § 87(2)(b) [REDACTED].                                               | H . § 87(2)(g) [REDACTED]   |
| I . POM Ali Cheikhali | Other: PO Ali Cheikhali intentionally made a false official statement in violation of Patrol Guide Procedure 203-08. | I . § 87(2)(g) [REDACTED]   |

### Case Summary

On September 24, 2012, Sgt. Sean Claxton called IAB to file a complaint on behalf of § 87(2)(b) (encl. E1-E2). The IAB log was forwarded to and received by the CCRB on October 4, 2012, with log number 12-50909. On September 24, 2012, § 87(2)(b) the brother of § 87(2)(b) called the Civilian Complaint Review Board (CCRB) to file a complaint on behalf of § 87(2)(b) (encl. E3-E6). On September 24, 2012, § 87(2)(b) filed a duplicate of this complaint via the Call Processing System (CPS). On September 26, 2012, § 87(2)(b) called the CCRB left a CPS spelling § 87(2)(b) with no additional context.

On September 23, 2012, at approximately 11:35 p.m., § 87(2)(b) and § 87(2)(b) were attending a baby shower in the vicinity of Church Street and East 54<sup>th</sup> Street, in Brooklyn when PO Maria Voskoboynik, PO Michael LaMoriello, PO Ali Cheikhali, PO Cassidy Tibbets and PO John Ko from the 67<sup>th</sup> Precinct stopped a male individual for riding a bicycle on the sidewalk. § 87(2)(b) approached the officers and was subsequently arrested. Sgt. Sean Claxton, PO Mark DeMarco, Sgt. Abdessama Diany, PO Adam Giacalone, PO Ashland Menelas from the 67<sup>th</sup> Precinct and other unidentified officers responded as backup to the incident location. The following allegations resulted:

- **Allegation A – Force: PO Michael LaMoriello used physical force against § 87(2)(b)**

§ 87(2)(g)

- **Allegation B – Force: PO Ali Cheikhali used physical force against § 87(2)(b)**
- **Allegation C – Force: PO Ali Cheikhali struck § 87(2)(b) with a blunt instrument.**

§ 87(2)(g)

- **Allegation D – Force: An officer struck § 87(2)(b) with a nightstick.**

§ 87(2)(g)

- **Allegation E – Discourtesy: Sgt. Sean Claxton spoke discourteously to § 87(2)(b)**

§ 87(2)(g)

- **Allegation F – Abuse of Authority: An officer threatened § 87(2)(b) and individuals with the use of force.**

§ 87(2)(g)

- **Allegation G – Force: Sgt. Sean Claxton used physical force against § 87(2)(b)**

§ 87(2)(g)

- **Allegation H – Discourtesy: An officer spoke discourteously to § 87(2)(b)**

§ 87(2)(g)

- **Allegation I – Other: PO Ali Cheikhali intentionally made a false official statement in violation of Patrol Guide Procedure 203-08.**

§ 87(2)(g)

On September 26, 2012, the CCRB generated a spin-off to IAB under CCRB case number § 87(2)(b) regarding § 87(2)(b)'s allegations of a broken nose sustained by § 87(2)(b). § 87(2)(b) stated that § 87(2)(b) was treated at § 87(2)(b) where he received such diagnosis. CCRB case number § 87(2)(b) filed by § 87(2)(b) was closed as a duplicate of this complaint.

### **Results of Investigation**

#### **Video Footage**

- § 87(2)(b) the owner of § 87(2)(b) § 87(2)(b) provided video footage of the incident from two cameras installed outside the § 87(2)(b)

#### **Summary of Video Footage 1**

This camera faces Church Avenue and East 54<sup>th</sup> Street and shows the entrance to the basement of the § 87(2)(b). The video is 18 minutes and 13 seconds and is time stamped. There are three vehicles parked on the left side of the curb. Additionally, there is a light pole, a garbage can and a couple of garbage bags next to the car that is closest to the camera. The left view of the camera shows two gates of a closed business. People are seen coming in and out of the basement throughout the video.

At 11:26:32 p.m., three officers, identified via the CCRB investigation as PO Voskoboynik, PO Cheikhali and PO LaMoriello, approach a male individual riding a bicycle on the sidewalk. There are approximately three civilians standing next to the male individual on the bicycle. At 11:27:23 p.m., PO Ko approached the incident location.

At 11:28:49 p.m., an individual wearing what appears to be a white t-shirt, black pants and white shoes exits the basement and approaches the officers. At 11:29:04 p.m., another individual wearing a grey shirt and black pants, identified via the CCRB investigation as § 87(2)(b) exits the basement and approaches the officers. At 11:29:12 p.m., PO LaMoriello pushes § 87(2)(b) back and away from the officers. § 87(2)(b) stumbles backwards and appears to pull up his pants. PO LaMoriello then pushes § 87(2)(b) back again. § 87(2)(b) stumbles backwards but does not leave the area. An individual pushes § 87(2)(b) into the street and away from the officers. § 87(2)(b) removes his shirt at approximately 11:29:26 p.m. while in the street. A crowd of approximately five people are seen on the video by 11:29:16 p.m.

At approximately 11:29:30 p.m., § 87(2)(b) runs up to PO LaMoriello, who is standing in the middle of the sidewalk facing the entrance to the basement. PO LaMoriello turns around and there is a one second pause before PO LaMoriello begins to push § 87(2)(b) toward one of the gates.

After about two pushes § 87(2)(b) is up against the gate. At approximately 11:29:35 p.m., the hands of both § 87(2)(b) and PO LaMoriello are up at face level. It appears that punches are being thrown but it is unclear where they land, if at all. PO LaMoriello and § 87(2)(b) are seen wrestling and spinning around until they land on the ground by the light pole. PO Cheikhali is seen with a small metallic circular object in his right hand at 11:29:41 p.m. and walking toward PO LaMoriello and § 87(2)(b).

§ 87(2)(b) is on the ground on his back with PO LaMoriello on top of him. § 87(2)(b)

§ 87(2)(b) is seen moving from under PO LaMoriello. PO LaMoriello is seen pushing § 87(2)(b) down to the ground as § 87(2)(b) is curling up in what appears to be an attempt to get away from PO LaMoriello. PO Cheikhali placed his hands on PO LaMoriello's back to balance himself and began kicking § 87(2)(b) in the torso. PO Cheikhali kicked § 87(2)(b) approximately eight times. PO Ko is standing with his back toward the gate and facing § 87(2)(b). At 11:29:47 p.m., PO Voskoboynik is standing by the light pole looking down at § 87(2)(b) and PO LaMoriello.

At 11:29:51 p.m., § 87(2)(b) is seen rolling on the ground and trying to get up. § 87(2)(b) pushed himself up using his left elbow. At 11:29:50, PO Cheikhali positions himself and strikes § 87(2)(b) with the metal object in his right hand. PO Cheikhali then kicks § 87(2)(b). At 11:29:56 p.m., PO Cheikhali and PO LaMoriello are seen pushing § 87(2)(b) down to the ground. § 87(2)(b) falls down with PO LaMoriello still on top of him. At 11:29:58 p.m., PO Cheikhali kicks § 87(2)(b) again. PO Cheikhali is seen bending down and reaching for § 87(2)(b). PO Voskoboynik assists PO Cheikhali and PO LaMoriello with restraining § 87(2)(b) at 11:30:07 p.m.

There are approximately seven individuals standing and watching the incident. PO LaMoriello, PO Cheikhali and PO Voskoboynik are still with § 87(2)(b) on the ground. At 11:30:09 p.m., an individual repeatedly approaches PO Tibbets and tries to get close to § 87(2)(b) and PO Tibbets repeatedly blocks the individual by extending his arm and pulling the individual away from § 87(2)(b).

At 11:31:25 p.m., a large crowd has formed and people are seen exiting the basement of the § 87(2)(b). At 11:31:27 p.m., § 87(2)(b) is stood up and placed on the hood of a nearby parked.

At 11:33:13 p.m., a police van arrived at the scene. Three officers are seen exiting the police van. It is unclear based on the video when § 87(2)(b) was placed in the van. At 11:37:12 p.m., the officers are dispersing the crowd by walking toward them while the crowd is backing up toward the camera. At 11:37:15 p.m., an officer is seen pushing back an individual. At 11:37:25 p.m., Sgt. Claxton is the officer without a hat standing closest to the gate facing the camera. PO LaMoriello is the officer who is facing away from the camera. PO Giacalone is the heavy set officer with a bald head and glasses. At 11:37:32 p.m., the crowd is off the video. At 11:38:08 p.m., people are seen on the street walking back in the direction of the incident location. At 11:38:59 p.m., a crowd of approximately seven people is congregating at the incident location while the officers are walking toward the corner of East 54<sup>th</sup> Street and Church Avenue, where the police van is parked. (encl. D1-D2).

### **Summary of Video Footage 2**

This video footage is 18 minutes and 45 seconds. The camera faces away from Church Avenue and East 54<sup>th</sup> Street.

At 11:29:41 p.m., PO LaMoriello has wrestled down § 87(2)(b) who fell on his back with PO LaMoriello on top of him. PO Cheikhali walks up to PO LaMoriello and § 87(2)(b). At 11:29:42 p.m., PO Cheikhali positioned himself for a kick by placing his hands on PO LaMoriello's back bending his left knee and extending his right leg all the way back. At 11:29:43 p.m., PO Cheikhali begins kicking § 87(2)(b) in the torso. § 87(2)(b) is rolling on the ground with PO LaMoriello on top of him. At 11:29:49 p.m., PO Cheikhali is seen with a metallic object that resembles handcuffs and positioning himself. At 11:29:50 p.m., PO Cheikhali strikes § 87(2)(b) on the head with the hand holding the metallic object. At 11:29:52 p.m., § 87(2)(b) is in a push up position with his head facing PO Cheikhali's right leg. PO Cheikhali is swinging his right arm with the metallic object in it, and at 11:29:52 p.m. PO Cheikhali strikes § 87(2)(b) in the head with the object. PO LaMoriello is holding § 87(2)(b) back while § 87(2)(b).

§ 87(2)(b) is still trying to get up.

At 11:29:53 p.m., PO Cheikhali appears to have kicked § 87(2)(b) in the head. At 11:29:54 p.m., PO Ko is standing with his back to the gate and facing § 87(2)(b). PO Tibbets stands with an asp in his right hand with his head turned toward § 87(2)(b). PO Voskoboynik is standing next to the light police and looking down toward § 87(2)(b). PO LaMoriello is holding § 87(2)(b) back while PO Cheikhali appears to help PO LaMoriello bring § 87(2)(b) to the ground by pushing him down with one hand. § 87(2)(b) is propping himself up and tries to stand up. At 11:29:57 p.m., PO LaMoriello and PO Cheikhali bring § 87(2)(b) down to the ground. § 87(2)(b) appears to be moving his legs while on the ground. At 11:30:02 p.m., PO Voskoboynik approaches PO LaMoriello and PO Cheikhali to help them handcuff § 87(2)(b).

§ 87(2)(b) is stood up at 11:31:26 p.m. and placed on the hood of a parked car. At 11:31:37 p.m., a crowd of approximately seven civilians forms at the scene. PO Tibbets still has his asp out at 11:31:41 p.m. and stands by the light pole facing the crowd. Members of the crowd hold an individual in a white shirt back as he tries to approach the officers.

At 11:37:12 p.m., the crowd begins to back away from the scene. At 11:37:16 p.m., the CCRB determined based on the physical characteristics and the actions described by § 87(2)(b) that the individual closest to the gate with a baseball hat is § 87(2)(b). The officers are seen walking toward the group, some of the officers have flashlights in their hand, while the group is backing up. At 11:37:41 p.m. the crowd is on the street and walking back to the incident location. At 11:37:53 p.m. the officers are walking back. The rest of the video is not pertinent to the investigation of the allegations. (encl. D3).

### **Civilian Statements**

#### **Witness:** § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b)-old black male, who is 6'0" tall, weighs 240 pounds, and has black hair and brown eyes.

### **CCRB Statement**

§ 87(2)(b) was interviewed in § 87(2)(b), on October 11, 2012 (encl. G1-G3).

On September 23, 2012, at approximately 11:35 p.m., § 87(2)(b) who is § 87(2)(b) of § 87(2)(b) located at § 87(2)(b), was inside of his business establishment. There were approximately seven officers in uniform, five of whom were identified via the CCRB investigation as PO Maria Voskoboynik, PO Michael LaMoriello, PO Ali Cheikhali, PO John Ko and PO Cassidy Tibbets from the 67<sup>th</sup> Precinct, standing outside the location. PO Voskoboynik was described as a white female in her mid to late 20s, approximately 5'9" tall, between 150 and 155 pounds with blond hair. PO Ko was described as an Asian male between 25 to 30 years old, approximately 5'7" tall, about 170 pounds with short black hair. PO LaMoriello was described as a stocky white male between 25 and 30 years old, approximately 5'9" tall, about 250 and 260 pounds, with short black hair. PO Cheikhali was described as a skinny white male in his early 30s, approximately 5'9" tall, about 170 pounds, with short black hair. PO1 was a white male between 25 and 32 years old, approximately 5'8" tall and about 190 or 195 pounds. PO2 was a white male between 30 and 35 years old, approximately 5'8" tall, about 185 pounds with black hair.

§ 87(2)(b) allowed his associate, § 87(2)(b) to use his basement for a baby shower. Approximately 20 people attended the shower. There are several video cameras installed inside and outside of the § 87(2)(b) with a television set in the basement that allowed partial

viewing of Church Avenue and East 54<sup>th</sup> Street. § 87(2)(b) observed via the closed circuit television (CCT) officers approach a male individual riding his bicycle on the sidewalk. § 87(2)(b) exited the basement shortly after seeing the officers approach the individual on the CCT. § 87(2)(b) asked what was going on and PO2 pushed him away approximately three times by placing his hand on § 87(2)(b)'s chest. § 87(2)(b)'s brother, § 87(2)(b) saw via the CCT that an officer pushed § 87(2)(b) and went outside. § 87(2)(b) followed § 87(2)(b) outside. § 87(2)(b) asked what was going on, and an officer identified as PO LaMoriello pushed § 87(2)(b) away. § 87(2)(b)'s friends grabbed § 87(2)(b) and pulled him away from the officers. § 87(2)(b) walked back towards PO LaMoriello. § 87(2)(b) pulled up his pants as he approached PO LaMoriello and said, "Officers." PO LaMoriello approached § 87(2)(b) and began to repeatedly push him in the chest. § 87(2)(b) backed into a wall and PO LaMoriello began to punch him in the chest three to four times. PO LaMoriello then wrapped his arms around § 87(2)(b) and slammed him on the ground.

§ 87(2)(b) fell on his stomach. PO LaMoriello punched § 87(2)(b) in the face three to four times, while PO Cheikhali approached with handcuffs in his hand and struck § 87(2)(b) with the handcuffs in the head approximately six times. PO1 approached § 87(2)(b) and kicked him approximately ten times on the left side of his body, while PO2 struck § 87(2)(b) with a night stick. § 87(2)(b) saw blood coming from § 87(2)(b)'s head. § 87(2)(b) told PO Ko, who was standing and watching the incident, that the force was unnecessary, but PO Ko did not respond.

There were approximately 20 people standing and watching the incident. § 87(2)(b) became upset and began to scream at the officers, asking what they were doing. Another brother of § 87(2)(b) known to the CCRB as § 87(2)(b) was also yelling at the officers telling them that § 87(2)(b) was his younger brother. § 87(2)(b) and § 87(2)(b) approached the officers who were with § 87(2)(b) § 87(2)(b) and another individual held them back to prevent them from getting any closer to the officers.

§ 87(2)(b) told § 87(2)(b) and § 87(2)(b) to calm down. § 87(2)(b) did not hear § 87(2)(b) and § 87(2)(b) use any profanity toward the officers. PO LaMoriello stood § 87(2)(b) up while PO Cheikhali and PO1 escorted § 87(2)(b) to a car. § 87(2)(b) was placed on the hood of the car, and PO Ko called for backup over the radio.

Approximately five to ten minutes later, a police van and three to four police cars with twelve to fifteen additional officers responded. There were two sergeants at the scene. The first sergeant was identified via the CCRB investigation as Sgt. Abdessama Diany from Patrol Borough Brooklyn South (PBBS). Sgt. Diany was described as a white male between 30 to 37 years old, approximately 5'8" to 5'9" tall, about 200 pounds with short black hair.

§ 87(2)(b) observed a male individual, known to the CCRB as § 87(2)(b) standing on the corner of Church Avenue and East 54<sup>th</sup> Street. The backup officers were telling everyone to move, and § 87(2)(b) observed § 87(2)(b) comply. § 87(2)(b) told the officers, "That's fucked up," referring to the way they handled § 87(2)(b). Approximately three of the backup officers approached § 87(2)(b). One of the officers, pushed § 87(2)(b) in the chest using two hands. § 87(2)(b) hit a wall as a result. § 87(2)(b) stood across the street when he observed the officers' interaction with § 87(2)(b). § 87(2)(b) described this officer as a white male, between 210 and 220 pounds, and approximately 6'0" tall. The second sergeant, who was identified by § 87(2)(b) as Sgt. Sean Claxton from the 67<sup>th</sup> Precinct, was described only as a black male. § 87(2)(b) was handcuffed and placed in the police van. § 87(2)(b) did not see an officer punch § 87(2)(b) and did not hear any of the officers use profanity when speaking to § 87(2)(b).

**Complainant/Victim:** § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b)-old black male, who is 6'0" tall, weighs 165 pounds, with black hair and brown eyes. § 87(2)(b)

### Statement to Medical Personnel

On § 87(2)(b), § 87(2)(b) went to § 87(2)(b) where he complained of pain to his shoulder after being assaulted by police. In the Emergency Physician Record an abrasion to his lip was noted. On § 87(2)(b) 12, § 87(2)(b) told § 87(2)(b) that he was assaulted following an altercation with the NYPD on September 23, 2012, and complained of pain to right shoulder, neck and lower back.

### 50-H Hearing

On § 87(2)(b), § 87(2)(b) testified at his 50-H Hearing. § 87(2)(a) Gen.Mun. §50-H(3)

### CCRB Statement

§ 87(2)(b) provided a telephone statement on September 26, 2012 (encl. F1). § 87(2)(b) was interviewed at the CCRB on October 1, 2012 (encl. F2-F4). § 87(2)(g)

On September 23, 2012, at approximately 11:15 p.m., § 87(2)(b) was at his friend's baby shower, which took place in the basement of a § 87(2)(b) located in the vicinity of Church Avenue and East 54<sup>th</sup> Street, in Brooklyn. There were approximately 40 to 50 people in attendance. § 87(2)(b) only identified § 87(2)(b) and § 87(2)(b) as being present at the baby shower. § 87(2)(b) was walking in and out of the basement because it was hot inside. At one point when he and § 87(2)(b) exited the basement, they observed § 87(2)(b) approximately 10 feet away standing bent over the hood of a police car, bleeding from his forehead. The police car was parked on East 54<sup>th</sup> Street and was on the same side of the street as the basement.

An officer, who was identified by the CCRB investigation as PO Michael LaMoriello from the 67<sup>th</sup> Precinct, held a handcuffed § 87(2)(b) on the vehicle down by pushing on his back. There were about three police cars and ten to fifteen uniformed police officers present. A crowd of approximately ten to fifteen people, including § 87(2)(b) were watching the incident.

A marked police van and two additional patrol cars arrived at the scene. § 87(2)(b) did not see how many additional officers arrived. The officers instructed the crowd to disperse. Sgt. Sean Claxton from the 67<sup>th</sup> Precinct, whom § 87(2)(b) identified via his name plate, approached a crowd of ten to twelve people and instructed them to move multiple times saying, "Get out of the way. You are blocking pedestrians from passing on the sidewalk." Sgt. Claxton was described as a black male in his late 20s to early 30s, between 5'6" to 5'7" tall.

§ 87(2)(b) complied and backed away into a wall. Sgt. Claxton approached § 87(2)(b) pushed him in the chest with one hand and stated, "Get off the fucking block." § 87(2)(b) did not sustain any injuries as a result of Sgt. Claxton pushing him and did not trip or fall. § 87(2)(b) asked Sgt. Claxton why everyone had to leave, and Sgt. Claxton replied, "Get off the fucking block." Another officer, pulled out a can of pepper spray, pointed it at the crowd and said "Do you want us to pepper spray you?" in reference to the crowd. This officer was described as a slim white male in his late 20s to early 30s approximately 6'2" to 6'3" tall. § 87(2)(b) and § 87(2)(b) complied and walked north on East 54<sup>th</sup> Street and crossed Church



Avenue. § 87(2)(b) did not allege that an officer threatened to use pepper spray in his telephone statement.

§ 87(2)(b) and § 87(2)(b) stood at the northwest corner of Church Avenue and East 54<sup>th</sup> Street, for approximately five to ten minutes, talking to multiple officers, expressing their displeasure and asking about what happened.

Approximately five to ten minutes later, Sgt. Claxton walked over to the center of Church Avenue and East 54<sup>th</sup> Street and instructed the crowd to disperse. Sgt. Claxton then turned towards § 87(2)(b) and § 87(2)(b) and said, “Let’s get them. None of them are leaving here tonight.” Sgt. Claxton and additional unidentified officers rushed towards him. § 87(2)(b) saw some people run away. § 87(2)(b) did not try to run away. Sgt. Claxton grabbed § 87(2)(b) by his right arm, pulled § 87(2)(b)’s arm behind his back and pushed § 87(2)(b) against the gates. The right side of § 87(2)(b)’s body made contact with the gate, including his right shoulder and the right side of his face. § 87(2)(b) sustained an injury to his right shoulder and a sore lip. § 87(2)(b) did not see where § 87(2)(b) and § 87(2)(b) were at that point. Sgt. Claxton then punched § 87(2)(b) approximately three to five times in the center of his lower back and handcuffed him. Sgt. Claxton instructed another officer, who was identified by § 87(2)(b) by name as PO Mark DeMarco from the 67<sup>th</sup> Precinct, to escort § 87(2)(b) to the van. PO DeMarco was described as a white male in his late 20s to early 30s, between 6’2” to 6’3” tall and weighed about 180 to 210 pounds. While § 87(2)(b) was walking to the police van, he asked PO DeMarco why he was being arrested. PO DeMarco told § 87(2)(b) that he was arrested for assaulting an officer and resisting arrest. When PO DeMarco and § 87(2)(b) reached the van, another officer, told § 87(2)(b) “Go to the other fucking side of the van.” This officer was a muscular white male in his mid-30s, 6’2” to 6’4” tall and weighed about 220 pounds. PO DeMarco left § 87(2)(b) by the van and went to a patrol car.

§ 87(2)(b) sat in the back of the van, on the right side, and had dropped his hat while in the van. § 87(2)(b) asked an officer to pass him his hat, and the officer replied, “Here is your fucking hat,” and tossed it on the front seat. § 87(2)(b) was transported to the 67<sup>th</sup> Precinct stationhouse with three officers in the van.

Once at the stationhouse, § 87(2)(b) was placed in a cell. Sgt. Claxton approached § 87(2)(b) and told him he could be charged with assaulting an officer and resisting arrest but that he would release him with a summons. § 87(2)(b) did not respond to Sgt. Claxton. § 87(2)(b) was later released with a summons for § 87(2)(b).

**Victim:** § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b)-old black male, who is 6’1” tall, 200 pounds, with black hair and brown eyes.

**Arrest Photo**

§ 87(2)(b) arrest photo shows that his head is bandaged with white gauze around his head (encl. W1).

**Notice of Claim**

The Notice of Claim filed by § 87(2)(b) with the Comptroller’s Office and received by the City of New York on § 87(2)(b), had the following details. On September 23, 2012, at approximately 11:30 p.m., § 87(2)(b) was repeatedly pushed by police officers, struck on his head and face, grabbed and slammed to the ground. While on the ground, officers repeatedly kicked and punched § 87(2)(b) on his face, head and body. An officer struck § 87(2)(b) on his head with metal handcuffs. (encl. Y1-Y4).

**Attempts to Contact Civilians**

On September 26, 2012, four phone calls were made to § 87(2)(b) after he left a CPS message spelling § 87(2)(b) first and last names with no additional context to it. Four voice messages were left with instructions to call the CCRB. As of January 31, 2014, § 87(2)(b) did not call the CCRB.

§ 87(2)(b) attorney, § 87(2)(b), did not want § 87(2)(b) to provide a statement to the CCRB until March 28, 2013.

On March 28, 2013, the CCRB contacted § 87(2)(b) who said that he wished to speak to § 87(2)(b) prior to scheduling an interview. § 87(2)(b) agreed to call the CCRB on March 29, 2013, to schedule an interview. On March 29, 2013, the CCRB called § 87(2)(b) but was unable to leave a voice message because the mail box had not been set up. On April 2, 2013, the CCRB reached § 87(2)(b) who said that he could not talk and asked if he could call back. § 87(2)(b) never called back. From April 4, 2013, to April 22, 2013, a total of six contact attempts were made to the attorney of § 87(2)(b) to schedule an appointment. On April 15, 2013, a final please call letter was mailed to § 87(2)(b). On April 22, 2013, another final please call letter was sent to § 87(2)(b).

On April 1, 2013, § 87(2)(b) failed to appear for his scheduled appointment. On April 1, 2013, a missed appointment letter was mailed to § 87(2)(b). On April 15, 2013, a final please call letter was mailed to § 87(2)(b).

As of January 31, 2014, neither § 87(2)(b) nor § 87(2)(b) called the CCRB to schedule an in-person interview.

The CCRB was unable to obtain a statement from § 87(2)(b)'s uncle who may have also witnessed the incident. On April 14, 2013, a please call letter was mailed to § 87(2)(b). On April 22, 2013, a final please call letter was sent to § 87(2)(b). On January 30, 2014, a search of Lexis Nexis disclosed two telephone numbers for § 87(2)(b) (encl. BB1-BB2). On January 30, 2014, the CCRB called both numbers. One number was not in-service and the other rang continuously. On May 20, 2013, the US Postal Service returned the final please call letter to the CCRB. As of January 31, 2014, § 87(2)(b) did not contact the CCRB to schedule an interview.

On January 30, 2014, a search of Lexis Nexis yielded one result for § 87(2)(b) and two phone numbers (encl. BB3-BB4). On January 30, 2014, the CCRB called both numbers but they were not in service.

### **Results of Field Work**

On October 9, 2012, Inv. Sazonov and Inv. Schiavo conducted field work and spoke to § 87(2)(b) who said that he witnessed the incident but needed to go to work and could not speak to the investigator.

The CCRB investigator also spoke to the management of SuperWash Laundromat and Deli & Grocery but were unable to locate anyone who may have witnessed the incident.

### **NYPD Statements:**

#### **Subject Officer: PO MICHAEL LAMORIELLO**

- *PO Michael LaMoriello is a § 87(2)(b)-old white male, who is 6'0" tall, 280 pounds, with brown hair and brown eyes.*
- *On the day of the incident, PO LaMoriello was assigned to the 67<sup>th</sup> Precinct. PO LaMoriello worked alone in uniform from 10:00 p.m. to 6:35 a.m. PO LaMoriello was assigned to a single foot post No. 2.*

### **Memo Book Entries**

PO LaMoriello recorded in his memo book that on September 21, 2012, at 11:30 p.m., while assisting spike post 1 with a male who was stopped, a male was obstructing police from performing lawful duties and was instructed several times to disperse. The male repeatedly approached PO LaMoriello in a threatening manner. PO LaMoriello and his partner attempted to affect a lawful arrest and male became irate and actively resisted arrest. One under for spike post 1. PO LaMoriello incurred lacerations to arms and contusion to right hand. (encl. I1-I2).

### **Witness Statement/AIDED**

On September 23, 2012, PO LaMoriello prepared a statement concerning PO Cheikhali's injuries. PO LaMoriello noted that he witnessed PO Cheikhali sustain cuts and swelling to his right hand and arm while trying to subdue § 87(2)(b) who was violent. PO Cheikhali also suffered open wounds that were exposed to § 87(2)(b) blood. (encl. H6, encl. R1-R2).

### **Line Of Duty Injury Report**

On § 87(2)(b), PO LaMoriello was treated at § 87(2)(b) for § 87(2)(b) as a result of § 87(2)(b) violently resisting arrest. § 87(2)(b)

PO LaMoriello noted in Part C of the LOD Report that he was struck with a closed fist in the face and sustained lacerations, swelling and pain to both hands and arms as a result of § 87(2)(b) violent resistance. (encl. I3-I6)

### **CCRB Statement**

PO LaMoriello was interviewed at the CCRB on May 9, 2013 (encl. I7-I9).

On September 23, 2012, at approximately 11:35 p.m., PO Voskoboynik stopped an unidentified male individual for riding his bicycle on the sidewalk in the vicinity of East 54<sup>th</sup> Street and Church Avenue, in Brooklyn. The individual on the bicycle was compliant with PO Voskoboynik. PO Cheikhali, PO Tibbets and PO Ko were also in the area. There was a party going on in the basement of a § 87(2)(b) of East 54<sup>th</sup> Street and Church Avenue.

A crowd of approximately 20 people observed the stop and kept trying to approach the officers and interfere with PO Voskoboynik. The crowd was there prior to the stop. The crowd initially consisted of five to ten people. However, more people came out when the individual on the bicycle was stopped. The crowd was yelling and cursing at the officers but PO LaMoriello did not remember what they were saying. PO LaMoriello instructed the crowd to disperse. One individual in particular, known to the CCRB as § 87(2)(b) kept trying to approach the officers, and PO LaMoriello instructed him multiple times to leave. § 87(2)(b) came within inches of PO LaMoriello when he approached. § 87(2)(b) ignored PO LaMoriello's instructions, and PO LaMoriello pushed him in the chest.

§ 87(2)(b) walked into the street, screaming that he was going to fight the officers and took his shirt off. § 87(2)(b) walked up to PO LaMoriello in a threatening manner and squared off with him. It appeared that § 87(2)(b) was going to throw a punch because § 87(2)(b) raised his hands. PO LaMoriello punched § 87(2)(b) first in the face but did not remember how many times. § 87(2)(b) fought back by punching and kicking PO LaMoriello. § 87(2)(b) landed one punch on PO LaMoriello's face almost immediately during the initial engagement. PO Cheikhali and PO Voskoboynik assisted PO LaMoriello with handcuffing § 87(2)(b). PO LaMoriello did not see PO Cheikhali or PO Voskoboynik kick or punch, or strike § 87(2)(b) with an asp. PO LaMoriello did not see PO Cheikhali or PO Voskoboynik use handcuffs to strike § 87(2)(b). PO LaMoriello did not know whose handcuffs were used to handcuff § 87(2)(b).

but said that his handcuffs were not used. The other officers at the scene assisted with dispersing the crowd.

After § 87(2)(b) was handcuffed, someone from the crowd threw a bottle at the officers and it hit PO Voskoboynik. PO LaMoriello went to assist other officers with dispersing the crowd. However, the people in the crowd were not dispersing. Backup officers responded. PO LaMoriello did not request backup. Sgt. Claxton responded to the scene. There were other sergeants present but PO LaMoriello did not remember who they were. A police van also responded. PO LaMoriello did not know the names of the officers in the van. PO LaMoriello did not remember what the people from the crowd were saying, or if they were cursing. PO LaMoriello did not threaten to use his pepper spray when attempting to disperse the crowd, and he did not hear any other officer do so. PO LaMoriello did not recall if any officer said, “Get off the fucking block” or “Get the fuck out of here.” PO LaMoriello did not recall if any officer used profanity during the incident.

PO LaMoriello did not recognize a photo of § 87(2)(b) and did not recall Sgt. Claxton arresting § 87(2)(b). Besides the arrest of § 87(2)(b), PO LaMoriello did not recall if anyone else was arrested. PO LaMoriello did not see Sgt. Claxton punch anyone at the scene, and he did not see any officer punch or use physical force against any other civilian. PO LaMoriello did not hear any officer tell § 87(2)(b) “Go to the other fucking side of the van” or “Here is your fucking hat.” PO LaMoriello did not know what Sgt. Claxton did after arriving on scene.

PO LaMoriello sustained lacerations to his arms and a contusion to his right hand. PO Cheikhali and PO Voskoboynik also sustained injuries while arresting § 87(2)(b). PO Cheikhali had cuts on his arms. PO LaMoriello did not know what injuries PO Voskoboynik sustained. PO LaMoriello spoke to Sgt. Claxton later on that evening at the 67<sup>th</sup> Precinct stationhouse about his injuries because a line of duty report had to be prepared.

The video footage facing Church Avenue and East 54<sup>th</sup> Street was played for PO LaMoriello beginning at 11:29:00 p.m. and was stopped at 11:31:18 p.m. PO LaMoriello was able to tell which officer was him in the video based on the actions he took with respect to § 87(2)(b). PO LaMoriello pointed out in the video that at approximately 11:29:36 p.m., when § 87(2)(b) back was against the gate was when § 87(2)(b) punched him. PO LaMoriello did not know how many times § 87(2)(b) punched him but said that § 87(2)(b) connected only once.

At 11:29:41 p.m., PO LaMoriello said he took § 87(2)(b) to the ground to get control of him. PO LaMoriello did not see PO Cheikhali kick § 87(2)(b) at the time because he was trying to handcuff § 87(2)(b). From 11:29:42 p.m. to 11:29:48 p.m. PO LaMoriello stated that § 87(2)(b) was “actively resisting.” PO LaMoriello was telling § 87(2)(b) to stop resisting while they were on the ground. § 87(2)(b) was wrestling with PO LaMoriello and was refusing to be handcuffed between 11:29:42 p.m. and 11:30:03 p.m. After viewing the video, PO LaMoriello could not tell who handcuffed § 87(2)(b).

The part of the video where the officers are trying to disperse the crowd, beginning at 11:37:15 p.m., was played for PO LaMoriello. At 11:37:23 p.m., PO LaMoriello identified himself as the officer closest to the camera. The video footage which faces away from Church Avenue and East 54<sup>th</sup> Street was played for PO LaMoriello. PO LaMoriello confirmed that PO Voskoboynik and PO Cheikhali were the officers who assisted him with handcuffing § 87(2)(b) but he could not differentiate between the officers based on the video.

After § 87(2)(b) was handcuffed, PO LaMoriello walked him to a parked car and stood there with him. § 87(2)(b) was bleeding but PO LaMoriello could not tell where he was bleeding from. When the backup officers arrived, § 87(2)(b) was placed in a police van and PO LaMoriello did not see him after that. PO LaMoriello did not know what happened to the male on the bicycle.

**Subject Officer: PO ALI CHEIKHALI**

- PO Ali Cheikhali is a § 87(2)(b) -old white male, who is 6'0" tall, 175 pounds, with brown hair and brown eyes.
- On the day of the incident, PO Cheikhali was assigned to the 67<sup>th</sup> Precinct. PO Cheikhali worked alone in uniform from 10:00 p.m. to 6:35 a.m. PO Cheikhali was assigned to a spike foot post 7.

**Memo Book Entries**

PO Cheikhali recorded in his memo book that on September 21, 2012, at approximately 11:30 p.m., he called for additional units because while assisting spike post 5 with the stop of a male on a bicycle, a male was obstructing police from performing lawful duty. The male was instructed several times to disperse but he repeatedly came towards PO Cheikhali's partner in a threatening manner. PO Cheikhali and his partner attempted to effect a lawful arrest of the male for failure to disperse. The male became irate and actively resisted arrest by pushing, punching and flailing his arms and refused to put his hands behind his back. PO Cheikhali called for additional units for crowd control. The male was arrested by spike post 5. PO Cheikhali incurred lacerations and a contusion to his hands, scrapes on knees and had contact with the defendant's blood. At 11:59 p.m., PO Cheikhali arrived at the 67<sup>th</sup> Precinct stationhouse for administrative duty. At 12:45 a.m., PO Cheikhali went to § 87(2)(b) to receive treatment for his injuries. (encl. H1-H3).

**Witness Statement/AIDED**

On September 24, 2012, PO Cheikhali prepared a statement concerning PO LaMoriello's injuries. PO Cheikhali noted that he observed PO LaMoriello get punched in the face with a closed fist while attempting to subdue § 87(2)(b) who was violent and actively resisted. PO LaMoriello sustained cuts to both hands and arms and was exposed to § 87(2)(b) blood. (encl. I5, encl. R1-R2).

**Line of Duty Injury Report**

On § 87(2)(b), PO Cheikhali was treated at § 87(2)(b) for § 87(2)(b) as a result of § 87(2)(b) actively resisting arrest. § 87(2)(b) (encl. H4-H6).

**CCRB Statement**

PO Cheikhali was interviewed at the CCRB on May 10, 2013 (encl. H7-H10). § 87(2)(g) Approximately ten minutes after PO Voskoboynik stopped the male on the bicycle, § 87(2)(b) exited the § 87(2)(b) basement and approached PO LaMoriello and the male on the bicycle. § 87(2)(b) was in PO LaMoriello's face when he approached him, and PO LaMoriello told § 87(2)(b) to get back and pushed him away. § 87(2)(b) approached PO LaMoriello and the individual on the bicycle three to five times, made threatening remarks and appeared intoxicated based on the way he was acting and slurring his words. PO Cheikhali did not remember any specific threatening remarks but recalled § 87(2)(b) was asking why the officers stopped the male on the bicycle. PO Cheikhali did not remember if § 87(2)(b) was using profanity.

PO Cheikhali was on the phone with his command checking to see if the individual on the bicycle had any outstanding warrants when § 87(2)(b) took off his shirt and approached PO LaMoriello. § 87(2)(b) began pushing PO LaMoriello, and PO LaMoriello was pushing § 87(2)(b).

§ 87(2)(b) back against the wall. PO Cheikhali went over to assist PO LaMoriello. PO Cheikhali did not see PO LaMoriello strike § 87(2)(b) but recalled § 87(2)(b) punching PO LaMoriello in the face once after he reviewed his witness statement. He did not remember what part or side of PO LaMoriello's face was punched. PO Cheikhali did not know what PO Voskoboynik was doing during the struggle.

§ 87(2)(b) PO LaMoriello and PO Cheikhali struggled for approximately 30 seconds and then fell to the ground. PO Cheikhali was not sure what caused them to fall. PO Cheikhali did not remember if PO LaMoriello and § 87(2)(b) fell down first or if he fell down with them. § 87(2)(b) had his arms spread out on the ground in a push up position and flexed his muscles to prevent the officers from bringing his arms behind his back. PO Cheikhali tried to bring § 87(2)(b) arms behind his back but § 87(2)(b) resisted. PO Cheikhali punched § 87(2)(b) in the face and torso. PO LaMoriello was on the ground on top of § 87(2)(b) when PO Cheikhali punched him. PO Cheikhali was on his knees when he punched § 87(2)(b) PO Cheikhali did not remember how many times he punched § 87(2)(b) PO Cheikhali used his fists to punch § 87(2)(b) and he did not have anything in his hand when he hit him. PO Cheikhali did not remember kicking § 87(2)(b) and he did not remember if PO LaMoriello punched or kicked § 87(2)(b) PO Cheikhali did not use a nightstick to strike § 87(2)(b) and he did not see any other officer do so. PO Cheikhali did not remember if PO Voskoboynik assisted with handcuffing § 87(2)(b) PO Cheikhali did not remember whose handcuffs were used to handcuff § 87(2)(b) § 87(2)(b)

Once § 87(2)(b) was handcuffed, he was stood up and walked over to a nearby parked car. § 87(2)(b) had blood on his clothes but PO Cheikhali did not know whose blood it was or if § 87(2)(b) had any injuries. The crowd was agitated and threw bottles at the officers. PO Cheikhali did not remember if any of the bottles hit the officers. PO Cheikhali called for backup. § 87(2)(b) was placed against the car and the officers waited for backup to arrive. A police van responded but PO Cheikhali did not remember how many officers were in the van, and he did not know if the van was assigned to the 67<sup>th</sup> Precinct or Patrol Borough. PO Cheikhali did not know the names of any of the backup officers except for Sgt. Claxton. The backup officers tried to disperse the crowd. PO Cheikhali did not assist in dispersing the crowd. PO Cheikhali did not hear the officers threaten to pepper spray the crowd. PO Cheikhali did not hear Sgt. Claxton say, "Get the fuck off the block," "Get the fuck out of here," and he did not hear any officer use profanity when dispersing the crowd. PO Cheikhali did not know if the people from the crowd used profanity toward the officers. PO Cheikhali did not see Sgt. Claxton or any other officers punch anyone at the scene. PO Cheikhali did not hear an officer say, "Go to the other fucking side of the van" or "Here is your fucking hat." PO Cheikhali did not remember if anyone besides § 87(2)(b) § 87(2)(b) was arrested.

PO Cheikhali went to the 67<sup>th</sup> Precinct stationhouse after the incident. PO Cheikhali spoke to Sgt. Claxton about the incident but he did not recall whether he spoke to him at the scene or at the stationhouse. PO Cheikhali scraped his knees and had cuts to his hands. He did not know how exactly he sustained the scrapes to his knees but said that it was probably from falling down. He did not know how he sustained the cuts to his hands. PO Cheikhali was confronted with his Line of Duty Injury Report Part B, which read that his injuries were sustained as a result of § 87(2)(b) unexpected rapid movement while PO Cheikhali had metal handcuffs in his hand and that the contact of his skin with the handcuffs caused injuries. PO Cheikhali did not remember telling Sgt. Claxton that he sustained the cuts to his hands from having a metal pair of handcuffs in his hand. PO Cheikhali said that the signature under that statement was not his and he did not recall reviewing that part of the report. After reviewing the report, he still had no recollection of how he sustained the cuts to his hand. PO Cheikhali was taken to § 87(2)(b) for treatment.

The video footage that faces Church Avenue and East 54<sup>th</sup> Street was played for PO Cheikhali. He did not recognize himself, PO LaMoriello or PO Voskoboynik in the video after viewing it. The video was played back beginning at 11:29:25 p.m., and PO Cheikhali was unable to point out himself in the video. The video was slowed down to 0.48 and viewed again. PO Cheikhali agreed based on the sequence of events that the officer who was on the ground with § 87(2)(b) was PO LaMoriello. PO Cheikhali did not recognize the officer who is seen approaching PO LaMoriello and § 87(2)(b) and kicking § 87(2)(b). PO Cheikhali did not recall an officer kicking § 87(2)(b) and the video did not refresh his memory. PO Cheikhali said that based on the actions that he took on the day of the incident, he would be the officer seen at 11:29:50 p.m. standing to § 87(2)(b) and PO LaMoriello's left side and leaning over them. At 11:29:48 p.m., PO Cheikhali said that he did not see any objects in his hand. PO Cheikhali was asked if he remembered having handcuffs in his hand, and he said yes.

The video footage that faces away from Church Avenue and East 54<sup>th</sup> Street was played for PO Cheikhali and slowed to 0.52. After reviewing the video, PO Cheikhali said that he recognized himself based on the actions he took at 11:29:41 p.m. as the officer standing up. The video shows PO Cheikhali kicking § 87(2)(b) several times but PO Cheikhali stated that he did not remember doing so, but if he did, it would be because he did not want to go down to the ground and expose his gun and because § 87(2)(b) was actively resisting arrest. PO Cheikhali did not see any objects in his hand. The video was slowed down to 0.42 and paused at 11:29:46 p.m. (encl. H11-H12) and PO Cheikhali said that he did not see or know what object the investigator was referring to in his hand. PO Cheikhali was asked what he was doing at 11:29:50 p.m., and he said that he was losing his balance. PO Cheikhali could not tell what he was doing in the video at 11:29:50 p.m. When asked what he was doing at 11:29:52 p.m., PO Cheikhali said that he was stepping back. He could not tell what he was doing with his arms. As PO Cheikhali reviewed the video, he was asked what he saw himself doing, and PO Cheikhali said that he saw himself trying to gain balance.

PO Cheikhali did not remember whether he considered using his asp or pepper spray that day. He denied striking § 87(2)(b) with handcuffs in the body or face.

**Witness Officer: PO MARIA VOSKOBOYNIK**

- *PO Maria Voskoboynik is a § 87(2)(b)-old white female, who is 5'10" tall, 160 pounds, with brown hair and brown eyes.*
- *On the day of the incident, PO Voskoboynik was assigned to the 67<sup>th</sup> Precinct. PO Voskoboynik worked in uniform and alone from 10:00 p.m. to 6:35 a.m. PO Voskoboynik was assigned to a single foot post No. 5 on Church Avenue.*

**Memo Book Entries**

PO Voskoboynik recorded in her memo book that on September 23, 2012, at 11:05 p.m. she stopped a male at the corner of East 54<sup>th</sup> Street and Church Avenue for riding his bicycle on the sidewalk. A large crowd formed while requesting the male to provide his identification. One black male shoved a member of service and a call for additional units was made. Two black males were arrested for § 87(2)(b).

At 1:30 a.m., PO Voskoboynik reported to the stationhouse for administrative paperwork and at 2:30 a.m. she resumed patrol. (encl. J1-J3).

**AIDED**

PO Justin Joseph from the 67<sup>th</sup> Precinct prepared an AIDED report pertaining to the injury of PO Voskoboynik. § 87(2)(b)

§ 87(2)(b)

### **Line of Duty Injury Report**

On § 87(2)(b), PO Voskoboynik was treated at § 87(2)(b) for a § 87(2)(b). PO Voskoboynik noted in Part C of the Line of Duty Injury Report that she was struck with a glass bottle on the back of her right shoulder from an unidentified perpetrator who was a part of a disorderly group. § 87(2)(b) (encl. J7-J8).

### **Arrest and Complaint Report**

PO Voskoboynik prepared the arrest and complaint report for § 87(2)(b). PO Voskoboynik noted that she stopped a male for riding a bicycle on the sidewalk and a disorderly crowd, including § 87(2)(b) formed around PO Voskoboynik and the male on the bicycle. § 87(2)(b) refused several lawful orders to disperse and approached PO LaMoriello in a menacing manner. § 87(2)(b) became violent and while officers attempted to restrain and arrest him, § 87(2)(b) struck PO LaMoriello with a closed fist, causing minor pain and swelling. Physical force was used to overcome assault. § 87(2)(b) was charged with § 87(2)(b) (encl. J3-J6).

### **Criminal Court Complaint Report**

The Criminal Court Complaint Report is consistent with the Complaint Report and PO Voskoboynik's CCRB testimony with the following additional information: a crowd of approximately 30 people gathered and were directed to disperse but § 87(2)(b) refused; PO Cheikhali informed PO Voskoboynik that he suffered cuts to his hands as a result of § 87(2)(b) resisting arrest. (encl. J9-J10)

### **CCRB Statement**

PO Voskoboynik was interviewed at the CCRB on May 8, 2013 (encl. J11-J14). § 87(2)(g)

A few members of the crowd asked why PO Voskoboynik stopped the male on the bicycle, and said that the officers were harassing him. PO Voskoboynik felt threatened by the crowd. § 87(2)(b) was yelling back and forth with PO LaMoriello before he punched PO LaMoriello. PO Voskoboynik did not see § 87(2)(b) punch PO LaMoriello because she was still with the male on the bicycle. PO LaMoriello later told PO Voskoboynik that § 87(2)(b) punched him in the face. When PO Voskoboynik turned her head to see what was happening, she saw PO LaMoriello push § 87(2)(b) and § 87(2)(b) stumbled back a few feet. § 87(2)(b) became upset, took his shirt off, and charged back at PO LaMoriello.

Once § 87(2)(b) charged at PO LaMoriello, he was placed on the ground. PO Cheikhali was with PO LaMoriello and assisted with arresting § 87(2)(b). PO Voskoboynik did not remember how PO LaMoriello brought § 87(2)(b) to the ground. The crowd went over to § 87(2)(b) and PO LaMoriello, and PO Voskoboynik did not see what was happening until she went around the crowd to try to help the officers handcuff § 87(2)(b). PO Voskoboynik did not issue any instructions to the crowd. PO Voskoboynik had to walk into the street to approach PO LaMoriello and PO Cheikhali because people were blocking the sidewalk. When PO Voskoboynik approached PO LaMoriello and PO Cheikhali, § 87(2)(b) was already on the ground. § 87(2)(b) was kicking his legs, flailing his arms and moving his body while on the



ground. § 87(2)(b) tried to get up while PO LaMoriello was trying to keep § 87(2)(b) on the ground. PO Voskoboynik was by § 87(2)(b) legs and did not see what PO Cheikhali was doing to try to handcuff § 87(2)(b).

PO Voskoboynik used her handcuffs to handcuff § 87(2)(b). PO Voskoboynik did not punch or kick § 87(2)(b) or strike him with a nightstick, and she did not see any other officer do so. She did not see PO Cheikhali or PO LaMoriello strike § 87(2)(b) in the face with handcuffs, and she did not see any officer with handcuffs out.

Backup arrived after the officers handcuffed § 87(2)(b) and placed him on a vehicle. The crowd was shouting at the officers and someone threw a bottle at PO Voskoboynik that hit her in the back and broke. PO Voskoboynik went to the hospital after the incident.

PO Voskoboynik did not know the names of any of the backup officers except Sgt. Claxton. The backup officers tried to disperse the crowd by instructing them to move but the crowd did not comply. PO Voskoboynik was with § 87(2)(b) when backup officers were dispersing the crowd. PO Voskoboynik did not hear any officer say, “Get off the fucking block,” or “Get the fuck out of here,” and she did not remember making these statements. PO Voskoboynik did not hear an officer threaten to pepper spray the crowd.

PO Voskoboynik recalled that § 87(2)(b) was also arrested for acting disorderly but she did not see how § 87(2)(b) was arrested. § 87(2)(b) was yelling and cursing but PO Voskoboynik could not remember the specifics. PO Voskoboynik did not see an officer punch § 87(2)(b) and she did not see Sgt. Claxton interact with § 87(2)(b). PO Voskoboynik did not hear Sgt. Claxton use any profanity during this incident, and she did not hear any officer use profanity toward § 87(2)(b).

PO Voskoboynik saw PO LaMoriello and PO Cheikhali at the 67<sup>th</sup> Precinct stationhouse and prepared a Line of Duty Injury Report. PO Cheikhali’s hand was wrapped up, but PO Voskoboynik did not see the lacerations noted in the Criminal Court Complaint.

The video footage that faces East 54<sup>th</sup> Street and Church Avenue was played for PO Voskoboynik. At 11:29:18 p.m. and at 11:29:27 p.m., an officer is seen pushing two civilians away. PO Voskoboynik stated that she did not see the pushing because she was still interacting with the male individual on the bicycle. PO Voskoboynik did not remember the altercation which occurred between PO LaMoriello and § 87(2)(b) at 11:29:39 p.m. At 11:29:56 p.m., PO Voskoboynik pointed herself out on the video as the officer who was standing behind the officer who was kneeling and next to a light pole. PO Voskoboynik was deciding how to get around § 87(2)(b) to handcuff him. PO Voskoboynik did not have her handcuffs out yet but had removed her asp just in case. At 11:30:09 p.m., PO Voskoboynik kneeled was focused on handcuffing § 87(2)(b).

#### **Witness Officer: PO JOHN KO**

- PO John Ko is § 87(2)(b)-old Asian male, who is 5’10” tall, 165 pounds, with black hair and brown eyes and wears prescription glasses.
- PO Ko is assigned to the 109<sup>th</sup> Precinct but at the time of the incident he was assigned to the 67<sup>th</sup> Precinct. On the day of the incident, PO Ko was working in uniform from 10:00 p.m. to 6:35 a.m. PO Ko was assigned to an overtime Spike Post No. 6, which covered Church Avenue, between East 55<sup>th</sup> Street and East 56<sup>th</sup> Street.

#### **Memo Book Entries**

PO Ko recorded in his memo book that on September 24, 2013, 11:20 p.m., four black males were stopped by posts 4, 5, 1 and 2 at the corner of East 54<sup>th</sup> Street and Church Avenue. At 11:25 p.m., PO Ko requested backup. At 11:50 p.m., PO Ko resumed patrol. (encl. O1-O2).

#### **CCRB Statement**

PO Ko was interviewed at the CCRB on November 6, 2013 (encl. O3-O6).

§ 87(2)(g)

PO Ko heard PO LaMoriello tell § 87(2)(b) to back up multiple times. § 87(2)(b) did not comply, and PO LaMoriello pushed him.

§ 87(2)(b) became angry after being pushed; he walked into the street and took off his shirt. PO Ko did not know what happened to the male individual on the bicycle because he was looking at § 87(2)(b) who was more of a threat. PO Ko was fifteen to twenty feet when he observed § 87(2)(b) quickly approach PO LaMoriello who was on the sidewalk trying to get the crowd to back up. § 87(2)(b) approached PO LaMoriello from behind. PO Ko believed that § 87(2)(b) was going to fight PO LaMoriello.

PO Ko did not see § 87(2)(b) make contact with PO LaMoriello upon approaching him but noted that there were officers in front of him obstructing his view. § 87(2)(b) got very close to PO LaMoriello. PO LaMoriello turned around and tried to grab § 87(2)(b) arms, but § 87(2)(b) moved back and tried to fight PO LaMoriello. PO Ko did not see how § 87(2)(b) tried to fight PO LaMoriello, and did not see PO LaMoriello punch § 87(2)(b). PO Ko could not say whether he saw PO LaMoriello push § 87(2)(b) against a wall, but he saw § 87(2)(b) against a wall. PO Ko did not see § 87(2)(b) and PO LaMoriello punch or kick each other. PO Ko did not hear PO LaMoriello issue any instructions to § 87(2)(b) during the struggle, and he did not hear § 87(2)(b) say anything to PO LaMoriello.

PO LaMoriello and § 87(2)(b) struggled briefly and then fell on the ground. PO Ko did not see PO LaMoriello trip § 87(2)(b) or pull him down. § 87(2)(b) resisted by moving around and trying to get up. PO LaMoriello did not punch § 87(2)(b) while on the ground. PO Cheikhali took out his handcuffs and tried to grab § 87(2)(b) hands to handcuff him. PO Cheikhali told § 87(2)(b) to produce his hands multiple times. PO Ko could not hear whether PO LaMoriello was issuing any instructions while on the ground. PO Ko was standing approximately ten feet away from § 87(2)(b).

Besides trying to grab § 87(2)(b) hands, PO Ko did not see PO Cheikhali do anything else. Later in the interview, PO Ko said that PO Cheikhali was trying to hold § 87(2)(b) leg down. PO Ko could not describe what exactly was happening because there was a lot of movement. PO Ko did not see PO Cheikhali kick or strike § 87(2)(b) in the face with his hands or handcuffs. PO Cheikhali's handcuffs were used to handcuff § 87(2)(b). PO Voskoboynik and PO Tibbets were conducting crowd control as PO Cheikhali and PO LaMoriello were trying to handcuff § 87(2)(b). Later in the interview, PO Ko said that § 87(2)(b) got up from the ground after being taken down, and then § 87(2)(b) was handcuffed with PO Voskoboynik's assistance.

Approximately 30 to 40 people came out of the basement and PO Ko told them to get back. The crowd was yelling but PO Ko did not remember the specifics. PO Ko saw an individual try to jump on one of the officers. PO Ko also saw someone throw a bottle toward PO Voskoboynik. PO Ko requested backup. Once § 87(2)(b) was handcuffed, PO Ko observed blood but he did not see where it came from. PO LaMoriello sustained a laceration to his hand, but PO Ko did not know how PO LaMoriello sustained it. PO Ko did not see any other officer with injuries. PO Ko did not remember what happened to § 87(2)(b) once he was handcuffed.

Additional officers arrived for crowd control. There were officers from other precincts. PO Ko did not know how many police cars and additional officers responded. There was a police van but PO Ko did not know if it was assigned to the 67<sup>th</sup> Precinct or Patrol Borough. PO Ko did not remember any supervisor at the scene besides Sgt. Claxton. The backup officers and Sgt. Claxton were dispersing the crowd by telling them to leave. Only some individuals were compliant. PO Ko did not threaten anyone with pepper spray, and he did not hear Sgt. Claxton or any other officer do so. PO Ko did not hear Sgt. Claxton say, "Get the fuck off the block," "Get

the fuck out of here” or use any profanity.

PO Ko did not know the circumstances that led to § 87(2)(b)'s arrest, and he did not know who arrested him. PO Ko knew that § 87(2)(b) was arrested because he saw him being placed in the police van in handcuffs. PO Ko did not know who escorted § 87(2)(b) to the van. PO Ko did not see Sgt. Claxton have any physical contact with § 87(2)(b). PO Ko did not hear any officer tell § 87(2)(b) “Go on the other fucking side of the van” or “Here is your fucking hat.” Once the crowd dispersed, PO Ko went back to his post. PO Ko never spoke to a supervisor regarding the incident.

PO Ko viewed the video footage that faces Church Avenue and East 54<sup>th</sup> Street. PO Ko identified himself on the video at 11:29:38 p.m. as the officer who was picking up one of the officer's memo book off the ground. PO Ko identified PO Cheikhali as the officer who was standing over PO LaMoriello. PO Ko said that he saw the other end of the handcuff in PO Cheikhali's hand. PO Ko said he saw PO Cheikhali do “what the video showed.”

#### **Witness Officer: PO CASSIDY TIBBETS**

- *PO Cassidy Tibbets is a § 87(2)(b)-old white male, who is 5'10" tall, 140 pounds, with brown hair and brown eyes.*
- *On the day of the incident, PO Tibbets was assigned to the 67<sup>th</sup> Precinct. PO Tibbets worked in uniform from 10:00 p.m. to 6:35 a.m. PO Tibbets was assigned to Spike Post 4, which covered the area on Church Avenue, between East 53<sup>rd</sup> Street and East 54<sup>th</sup> Street. PO Tibbets explained that Spike Post 4 is a shooting suppression post.*

#### **Memo Book Entries**

PO Tibbets recorded in his memo book that on September 24, 2012, at 11:40 p.m., one male was stopped at the corner of East 54<sup>th</sup> Street and Church Avenue by the officer assigned to Spike Post 5. The male was stopped for riding his bicycle on the sidewalk. Upon asking the individual for his identification, a large crowd formed. One male pushed an officer. At 11:45 p.m., PO Tibbets requested for backup to control the crowd. At 11:45 p.m., two individual were placed under arrest. (encl. P1).

#### **CCRB Statement**

PO Tibbets was interviewed at the CCRB on November 7, 2013 (encl. P2-P4). § 87(2)(g)

§ 87(2)(g)  
§ 87(2)(b) came approximately six inches away from PO LaMoriello's face and was throwing his hands in a violent manner. § 87(2)(b) pushed PO LaMoriello. PO LaMoriello responded by pushing § 87(2)(b) away into the street and he stumbled backwards.

§ 87(2)(b) became angry, removed his shirt and charged at PO LaMoriello. § 87(2)(b) approached PO LaMoriello with his arms in a fighting position. § 87(2)(b) was approximately one foot away from PO LaMoriello when they began to fight. § 87(2)(b) punched PO LaMoriello first, and may have landed one or two punches on PO LaMoriello. PO Tibbets then said that he saw § 87(2)(b) throw punches but he did not see them land. PO LaMoriello began throwing punches back at § 87(2)(b). PO Tibbets was five to six feet away from PO LaMoriello when the fight began and there was nothing that obstructed his view. PO Tibbets did not see § 87(2)(b) kick PO LaMoriello. PO Tibbets saw PO LaMoriello land one punch on § 87(2)(b) however, PO Tibbets did not remember where the punch landed.

While § 87(2)(b) and PO LaMoriello were struggling, a crowd of approximately 50 people gathered. § 87(2)(b) and PO LaMoriello fell to the ground, and PO Cheikhali went to assist with handcuffing § 87(2)(b). PO Tibbets and PO Voskoboynik were trying to keep the crowd away from the officers. PO Tibbets turned around to see if PO LaMoriello handcuffed § 87(2)(b).

§ 87(2)(b) and saw that § 87(2)(b) had his arm under a car. § 87(2)(b) kept reaching under a car to hide his hands from the officers and was kicking his legs. PO LaMoriello and PO Cheikhali were squatting when they were trying to handcuff § 87(2)(b). PO LaMoriello and PO Cheikhali kept yelling, “Give me your hands. Stop resisting,” but § 87(2)(b) was stiffening his arms. PO Tibbets did not see any objects in PO Cheikhali’s, PO LaMoriello’s or PO Voskoboynik’s hands while they were trying to handcuff § 87(2)(b). PO Tibbets did not see the officers handcuff § 87(2)(b) because § 87(2)(b) was behind him. PO Tibbets did not see PO LaMoriello or PO Cheikhali punch or kick § 87(2)(b). PO Tibbets did not see PO Cheikhali strike § 87(2)(b) with handcuffs or any metal object.

PO Tibbets had his asp out when he was dispersing the crowd. Someone threw a bottle at PO Tibbets. The crowd was cursing, saying, “Fucking police. Fuck you.” PO Tibbets used his asp to keep people back. PO Tibbets did not see any other officer with their asp out. PO Tibbets pushed one individual away, who kept reaching over PO Tibbets to grab PO LaMoriello and PO Cheikhali. PO Tibbets pushed the individual because the individual could have been reaching to grab his gun or the officers. The individual stepped back and assumed a fighting stance after being pushed back with the asp but did not attack PO Tibbets. PO Tibbets did not remember telling anyone that he was from the military or that he felt closed in.

Once § 87(2)(b) was handcuffed, he was stood up and placed against the trunk of a vehicle. PO Cheikhali requested backup. PO Tibbets did not see any injuries on § 87(2)(b). Approximately 20 additional officers responded for crowd control in two police vans and a couple of patrol cars. The only backup officer PO Tibbets identified was his supervisor – Sgt. Claxton.

Sgt. Claxton participated in crowd control by telling people to leave. Sgt. Claxton was on the North West corner and PO Tibbets was on the South West corner when dispersing the crowd. PO Voskoboynik was with PO Tibbets on the South West corner dispersing the crowd. Some people from the crowd complied and left while others did not. PO Tibbets did not threaten or hear anyone threaten to use pepper spray. PO Tibbets did not hear Sgt. Claxton say, “Get the fuck off the block,” or “Get the fuck out of here,” or use any profanity.

PO Tibbets observed an individual across the street, known to the CCRB as § 87(2)(b) get arrested. PO Tibbets did not know why § 87(2)(b) was arrested. PO Tibbets did not see Sgt. Claxton have any physical contact with § 87(2)(b) or any civilian at the scene. § 87(2)(b) was taken to a police van in handcuffs. § 87(2)(b) was placed in the police van that was different from the one that transported § 87(2)(b) to the stationhouse. PO Tibbets was across the street from the van. He did not hear any officer tell § 87(2)(b) “Go to the other fucking side of the van,” or “Here is your fucking hat.”

PO Tibbets viewed the video that faces Church Avenue and East 54<sup>th</sup> Street, beginning at 11:29:37 p.m. At 11:29:37 p.m., PO Tibbets identified the shirtless individual with his back against the gate and struggling with an officer as § 87(2)(b). At 11:29:49 p.m., PO Tibbets identified himself as the officer standing next to a vehicle facing Church Avenue and with his back toward the camera. At approximately 11:30:18 p.m. in the video, PO Tibbets took out his asp. PO Tibbets noted that at 11:30:37 p.m., the video showed the individual who was trying to reach over him.

**Subject Officer: SGT. SEAN CLAXTON**

- *Sgt. Sean Claxton is a § 87(2)(b)-old black male, who is 5’7” tall, 185 pounds, with black hair and brown eyes.*
- *On the day of the incident, Sgt. Claxton was assigned to the 67<sup>th</sup> Precinct. Sgt. Claxton worked alone in uniform from 10:00 p.m. to 5:35 a.m. Sgt. Claxton was assigned as a Spike Overtime Supervisor, a detail for a high crime area which entails supervising five*

*foot posts. Sgt. Claxton worked in a marked RMP.*

### **Memo Book Entries**

Sgt. Claxton recorded in his memo book that on September 23, 2012, at 11:45 p.m., he responded to request for additional units at the corner of East 54<sup>th</sup> Street and Church Avenue. Two members of the service, PO Cheikhali and PO LaMoriello, are transported to § 87(2)(b) due to line of duty injuries. (encl. K1-K2).

### **Line Of Duty Injury Report**

Sgt. Claxton interviewed PO LaMoriello, PO Cheikhali and PO Voskoboynik and recommended line of duty designations for each officer.

Sgt. Claxton noted in Part B of PO Cheikhali's Line of Duty Injury Report that PO Cheikhali had § 87(2)(b). Sgt. Claxton noted that the injuries were sustained because of § 87(2)(b)'s rapid movements in resisting, while PO Cheikhali had metal handcuffs in his hand and that the contact of PO Cheikhali's skin with the handcuffs caused injuries. (encl. H4).

Sgt. Claxton noted in Part B of PO LaMoriello's Line of Duty Injury Report that § 87(2)(b) punched PO LaMoriello in the face. Additionally, while PO LaMoriello was attempting to subdue § 87(2)(b) he sustained § 87(2)(b) from wrestling § 87(2)(b) on the ground, trying to restrain him with handcuffs. (encl. I3).

Sgt. Claxton also noted in Part B of the line of Duty Injury Report prepared for PO Voskoboynik that she suffered § 87(2)(b) when an unknown perpetrator threw a glass bottle at her. Sgt. Claxton noted that there were no witnesses to this allegation readily available for him to interview. (encl. J7).

### **IAB Command Center**

Sgt. Claxton called the Command Center to report an injured prisoner – § 87(2)(b). Sgt. Claxton stated that PO LaMoriello and PO Cheikhali were trying to disperse the rowdy crowd. § 87(2)(b) refused to move and punched PO LaMoriello in the face. § 87(2)(b) was pushed to the ground and apprehended. § 87(2)(b) suffered contusions and lacerations to the head and scratches to shoulder. § 87(2)(b) was removed to § 87(2)(b). PO LaMoriello suffered pain to left arm and minor scratches. (encl. E1).

### **CCRB Statement**

Sgt. Claxton was interviewed at the CCRB on March 22, 2013 (encl. K3-K5).

Sgt. Claxton responded to a request for additional units on the corner of East 54<sup>th</sup> Street and Church Avenue, in Brooklyn. When Sgt. Claxton arrived he saw about 70 civilians and between 20 to 30 police officers. The officers were just standing around and were not doing anything. Five out of eight officers who Sgt. Claxton supervised that night were on scene, and Sgt. Claxton did not know the remaining officers because they were assigned to Impact. Sgt. Claxton told the officers to disperse the crowd and then went to speak to PO Cheikhali.

PO Cheikhali said that he and PO LaMoriello approached an individual on a bicycle, who punched PO LaMoriello in the face and they began fighting. PO Cheikhali said that he and PO LaMoriello were assaulted and that he called for additional units to the scene. The individual on the bicycle who assaulted PO Cheikhali and PO LaMoriello was already handcuffed and placed in a police vehicle when Sgt. Claxton arrived.

Sgt. Claxton observed § 87(2)(b) and two other males shouting obscenities toward officers telling them to leave. Sgt. Claxton could not understand everything § 87(2)(b) and the others were yelling because they had thick Jamaican accents. He was able to understand curse

words such as “bumbaclot,” “pussy hole,” and “Go fuck your mama.” Sgt. Claxton did not hear any officers tell § 87(2)(b) or any of the other civilians that he would pepper spray them. Sgt. Claxton did not remember saying, “Get off the fucking block” or “Get the fuck out of here,” and he did not hear any other officer say so.

Sgt. Claxton instructed § 87(2)(b) several times to leave. § 87(2)(b) walked across the street with two other individuals, identified by § 87(2)(b) as § 87(2)(b) and § 87(2)(b) but then returned and continued yelling. He did this approximately four times. § 87(2)(b) never left the corner of Church Avenue and East 54<sup>th</sup> Street. The fourth time Sgt. Claxton instructed § 87(2)(b) to come over, and § 87(2)(b) and two other individuals crossed the street. Sgt. Claxton followed them and grabbed § 87(2)(b) by his arm because he was the closest to him. § 87(2)(b) struck Sgt. Claxton in his hand and pushed him away. Sgt. Claxton pulled back while one of the Impact officers, who was near Sgt. Claxton, grabbed § 87(2)(b) by his arms and placed him against an iron gate of a closed business. Sgt. Claxton did not see that officer strike § 87(2)(b) in the back, and Sgt. Claxton denied striking § 87(2)(b). Sgt. Claxton did not know the name or shield number of the officer who grabbed § 87(2)(b).

Sgt. Claxton handcuffed § 87(2)(b) and escorted him to a marked police vehicle. Sgt. Claxton did not remember if it was a van or a patrol car. Sgt. Claxton did not tell § 87(2)(b) “Go on the other fucking side of the van,” “Here is your fucking hat,” and he did not hear any other officer say so. Sgt. Claxton did not remember if there were any officers in the police vehicle, and he did not know who transported § 87(2)(b) to the stationhouse.

§ 87(2)(b) was transported to the 67<sup>th</sup> Precinct stationhouse and the crowd was dispersed because § 87(2)(b) and the two other individuals were no longer stirring up the crowd. Upon arrival at the stationhouse, Sgt. Claxton instructed PO Ali to issue § 87(2)(b) a summons for § 87(2)(b).

The video footage that faces East 54<sup>th</sup> Street and Church Avenue was played for Sgt. Claxton. Sgt. Claxton identified PO LaMoriello as the officer on the ground holding § 87(2)(b) and PO Cheikhali as the officer with handcuffs in his hand. Sgt. Claxton identified himself in the video and said that was telling the civilians to leave the scene. Sgt. Claxton said the video showed one of the times when § 87(2)(b) left and returned at approximately 11:37:55 p.m. to the scene.

#### **Witness Officer: PO MARK DEMARCO**

- PO Mark DeMarco is a § 87(2)(b)-old white male, who is 5’11” tall, 200 pounds, with black hair and brown eyes.
- On the day of the incident, PO DeMarco was assigned to the 67<sup>th</sup> Precinct. PO DeMarco worked in uniform from 7:00 p.m. on September 22, 2012 to 4:05 a.m. on September 23, 2012. PO DeMarco was assigned as Sgt. Diany’s operator, in marked RMP 4505.

#### **Memo Book Entries**

PO DeMarco recorded in his memo book that on September 23, 2012, at 10:45 p.m. he responded to a request for additional units at Church Avenue and East 54<sup>th</sup> Street. At 10:55 p.m., PO DeMarco resumed patrol. (encl. N1-N3).

#### **CCRB Statement**

PO DeMarco was interviewed at the CCRB on May 13, 2013 (encl. N4-N5).

§ 87(2)(g) Upon arrival on scene, PO DeMarco observed a disorderly crowd and § 87(2)(b) in handcuffs. The people in the crowd were cursing and yelling. The officers at the scene, including Sgt. Claxton, were trying to disperse the crowd. PO DeMarco did not remember

if he assisted with dispersing the crowd, and he did not remember issuing any instructions. PO DeMarco did not hear any officers mention pepper spray, and he did not threaten the crowd with pepper spray. PO DeMarco did not recall if Sgt. Claxton said, “Get the fuck out of here” and “Get off the fucking block.”

PO DeMarco saw § 87(2)(b) walk across the street and become belligerent. § 87(2)(b) was blocking traffic and was yelling. Sgt. Claxton and several officers approached § 87(2)(b) and arrested him. PO DeMarco did not remember how many officers approached § 87(2)(b). PO DeMarco could not estimate how far away he was from § 87(2)(b). § 87(2)(b) did not comply with being handcuffed by moving his arms around. PO DeMarco did not remember how long it took the officers to handcuff § 87(2)(b). It took more than one officer to handcuff § 87(2)(b) because he was resisting. PO DeMarco did not remember § 87(2)(b) being escorted to a police vehicle, and PO DeMarco did not remember personally escorting § 87(2)(b) to a police vehicle. PO DeMarco did not remember making any physical contact with § 87(2)(b). PO DeMarco did not strike § 87(2)(b) on his back. PO DeMarco did not see Sgt. Claxton or any officer strike § 87(2)(b) on the back. PO DeMarco did not see § 87(2)(b) get pushed into a gate.

PO DeMarco remembered that there was a police van at the scene, however, he did not remember if it was assigned to Patrol Borough or the 67th Precinct. PO DeMarco did not know which officers were in the van. PO DeMarco did not remember telling § 87(2)(b) “Go on the other fucking side of the van” or “Here is your fucking hat.” PO DeMarco did not hear any officer make those statements.

#### **Witness Officer: SGT. ABDESSAMA DIANY**

- Sgt. Abdessama Diany is a § 87(2)(b)-old white male, who is 6’0” tall, 210 pounds, with black hair and brown eyes.
- On the day of the incident, Sgt. Diany worked in uniform from 7:20 p.m. to 4:17 a.m. with PO DeMarco. Sgt. Diany was assigned as the 67<sup>th</sup> Precinct Impact Response Team (IRT) supervisor and worked in a marked RMP4505.

#### **Memo Book Entries**

Sgt. Diany recorded in his memo book that on September 23, 2012, at 11:00 p.m., he arrived at East 54<sup>th</sup> Street and Church Avenue. (encl. L1-L2)

#### **CCRB Statement**

Sgt. Diany was interviewed at the CCRB on October 4, 2013 (encl. L3-L5).

§ 87(2)(g)

§ 87(2)(b) Upon arrival, Sgt. Diany observed two officers. He believed that PO Cheikhali had handcuffs in his hand, and that § 87(2)(b) was handcuffed. Sgt. Diany also observed cuts to one of the officer’s hand but did not recall which hand. Sgt. Diany did not observe any injuries on § 87(2)(b).

There was a group of approximately 30 people around PO Cheikhali and PO LaMoriello. Sgt. Diany did not have any interaction with PO Cheikhali or PO LaMoriello. Sgt. Diany tried to disperse the crowd. The people from the crowd were yelling and did not want to leave. Approximately two minutes after Sgt. Diany arrived, a police van with additional officers responded. Besides Sgt. Diany and PO DeMarco, there were no other Impact officers.

It took approximately fifteen minutes to disperse the crowd and Sgt. Diany had to issue multiple instructions. Not everyone at the scene complied.

§ 87(2)(b) was arrested because he kept approaching the officers, refused to leave the scene and was loud. Sgt. Diany did not recall what § 87(2)(b) was yelling or whether he used any profanity. Sgt. Diany saw § 87(2)(b)’s arrest but did not know the officers that arrested him.

§ 87(2)(b) was across the street from Sgt. Diany when he was arrested. Sgt. Diany did not see Sgt. Claxton push § 87(2)(b) against a gate, and or punch § 87(2)(b) in the lower back. § 87(2)(b) was walked to a police van. Sgt. Diany was in the vicinity of the van. He did not hear any officer tell § 87(2)(b) “Go to the other fucking side of the van,” or “Here is your fucking hat.”

Sgt. Diany did not threaten to use pepper spray, or hear any officer mention the use of pepper spray. Sgt. Diany did not hear Sgt. Claxton say, “Get off the fucking block,” or use any profanity.

The video footage that faces Church Avenue and East 54<sup>th</sup> Street was played for Sgt. Diany, who identified the officer with a bald head and glasses and a heavy-set built as PO Adam Giacalone from the 67<sup>th</sup> Precinct. The officer who was standing closest to the gate and to the right of PO Giacalone was identified as PO DeMarco. Sgt. Diany recognized himself in the video as the officer all the way in the back of the picture at 11:37:39 p.m. Sgt. Diany identified the officer who is standing near the gate at 11:37:43 as PO Ashland Menelas from the 67<sup>th</sup> Precinct.

The video footage that faces away from Church Avenue and East 54<sup>th</sup> Street was played for Sgt. Diany, beginning 11:37:09 p.m. Sgt. Diany said that the officers are telling the crowd to leave. He pointed out that on the video at approximately 11:37:40 p.m., the civilians are seen walking back. At 11:37: 51 p.m., Sgt. Diany identified himself as the officer facing the street without a hat. At 11:38:18 p.m., Sgt. Diany identified the officer standing closest to the gate and facing the street as PO LaMoriello.

### **Medical Records**

On § 87(2)(b), § 87(2)(b) arrived at § 87(2)(b) with pain to right shoulder and back. An x-ray was done and came back normal. § 87(2)(b) was given Naproxen for pain and discharged to self-care on the same day.

On § 87(2)(b), § 87(2)(b) arrived at § 87(2)(b) with moderate pain to his neck and back. § 87(2)(b) was diagnosed with musculoskeletal pain. He was given Ibuprofen for pain and prescribed Naproxen and Flexeril for pain. § 87(2)(b) was discharged to self-care on the same day.

### **NYPD Documents**

#### **Command Log**

The Command Log entry for § 87(2)(b) notes that § 87(2)(b) had a hematoma to his forehead and a laceration to the back of his head. § 87(2)(b) was removed to § 87(2)(b) at 12:10 a.m. via ambulance. (encl. S2).

#### **Summons**

§ 87(2)(b) was issued summons number § 87(2)(b) for § 87(2)(b) by PO Mohammad Ali from the 67<sup>th</sup> Precinct. PO Ali noted that the offense occurred on September 23, 2012, at 11:20 p.m., in the vicinity of Church Avenue and East 54<sup>th</sup> Street, in Brooklyn. The summons was served on September 24, 2012. (encl. X13).

#### **SPRINT N15715**

On September 23, 2012, at 11:35 p.m., the officer assigned to post 5 responded to a fight in the vicinity of Church Avenue and East 54<sup>th</sup> Street, in Brooklyn. At 11:33 p.m., a female caller reported “a big gang war at the location.” She said that the officers were there and refused to provide her name. At 11:36 p.m., an officer assigned to the 67<sup>th</sup> Precinct foot post and two patrol supervisors from the 67<sup>th</sup> Precinct arrived. One of the supervisors advised not to send any more units to the location. A foot post officer said he was holding one male and requested one unit to



back him up. At 11:37 p.m., a foot post officer requested back up. At 11:38 p.m., another foot post said that he had one under and requested a supervisor to verify his arrest. At 11:40 p.m., a patrol supervisor said that one member of the service sustained an injury to his hand and requested an ambulance to the 67<sup>th</sup> Precinct stationhouse. At 11:45 p.m., EMS arrived. At 12:04 a.m., the officers assigned to a specialized vehicle from the 67<sup>th</sup> Precinct said they made an arrest. At 12:04 a.m., an officer assigned to Spike Portable said he had one under as of 11:59 p.m. At 12:19 a.m., a basic life support ambulance transported the perpetrator to § 87(2)(b). The specialized vehicle removed the perpetrator to § 87(2)(b) and made a crime arrest at 7:36 a.m. (encl. Q1).

### **IAB Command Center**

Captain Julio Ordonez from the 69<sup>th</sup> Precinct called the Command Center and stated that § 87(2)(b) gave § 87(2)(b) five staples to the front of the head, three staples to the rear, and stiches to the front middle. EKG was performed and yielded abnormal results. A CAT scan was ordered to see if there was tissue swelling around § 87(2)(b) heart, due to § 87(2)(b) not taking proper care of himself. (encl. E1).

### **Other Evidence**

As of January 30, 2014, the concurring IAB investigation is “active.” The investigating officer has recommended to unsubstantiate allegations against PO LaMoriello, PO Chiekhali and PO Voskoboynik. However, the Team Leader has yet to review the case.

### **Arrest for Incident and Disposition**

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
§ 87(2)(b)
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
§ 87(2)(b)

### **Status of Civil Proceedings**

- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b), claiming assault and battery, false arrest, unlawful imprisonment and malicious prosecution, and seeking an undetermined amount of money as redress (encl. Y1-Y4).
- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b), claiming trauma, shock, debasement, fright, fear, humiliation, embarrassment, psychological and emotional trauma, loss of freedom, physical and mental injury, pain and suffering, and seeking an unspecified amount of money as redress (encl. X16-X17). A 50-H hearing was held for § 87(2)(b) on § 87(2)(b) (encl. F10).

### **Civilians Criminal History**

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
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### **Civilians CCRB History**

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (encl. B4 – B7).

### **Subject Officers CCRB History**

- Sgt. Sean Claxton has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. B1).
- PO Michael LaMoriello and PO Ali Cheikhali have been members of the service for five years and there are no substantiated CCRB allegations against either of them. (encl. B2-3).

## Conclusion

### Identification of Subject Officers

PO LaMoriello and PO Cheikhali acknowledged using physical force to place § 87(2)(b) in custody. PO LaMoriello and PO Cheikhali identified themselves on the video as the officers who were physically interacting with § 87(2)(b). Specifically, PO LaMoriello identified himself as the officer who got into a struggle with § 87(2)(b) and went with him to the ground. PO Cheikhali identified himself as the officer who was standing over PO LaMoriello and § 87(2)(b) while they were on the ground.

§ 87(2)(b) alleged that an officer struck § 87(2)(b) with a nightstick. No officer admitted to striking § 87(2)(b) with a nightstick. § 87(2)(g)

§ 87(2)(b) alleged that an officer threatened him with pepper spray by removing the can from his utility belt and pointing at the crowd. The video did not show such and no officer interviewed admitted to taking such action. § 87(2)(g)

§ 87(2)(b) identified Sgt. Claxton by name as the officer who spoke discourteously to him and used physical force against him. § 87(2)(b) described Sgt. Claxton as a black male in his late 20s to early 30s, between 5'6" and 5'7" tall. Sgt. Claxton matched the description because he described himself in the Officer Interview Sheet as a § 87(2)(b)-old black male, 5'7" tall and 185 pounds. Additionally, Sgt. Claxton acknowledged interacting with § 87(2)(b) and participating in his arrest.

§ 87(2)(b) alleged that an officer in the van used discourteous language toward him. No officer interviewed acknowledged doing so or hearing any officer speak discourteously. A review of the Roll Call for Tour 3 did not yield any officers who were assigned to a police van. The Daily Vehicle Assignment Sheet for the date of the incident yielded three marked vans that were assigned to the command. However, none of the three vans were utilized on the day of the incident. § 87(2)(g)

### Investigative Findings and Recommendations

#### Allegation A – Force: PO Michael LaMoriello used physical force against § 87(2)(b)

It is undisputed that PO LaMoriello punched § 87(2)(b) in the face and brought him down to the ground. PO LaMoriello explained that § 87(2)(b) refused to leave after being instructed multiple times. PO LaMoriello also said that § 87(2)(b) went into the street screaming that he was going to fight the officers and removed his shirt. § 87(2)(b) then approached PO LaMoriello and squared off. PO LaMoriello perceived § 87(2)(b) actions to be threatening and believed that § 87(2)(b) was going to punch him.

The first video footage is consistent with PO LaMoriello's statement. § 87(2)(b) is seen on the video getting pushed back by PO LaMoriello. § 87(2)(b) remained at the scene and PO LaMoriello pushed him again. A male is seen pushing § 87(2)(b) into the street away from the officers. § 87(2)(b) walks into the street and takes his shirt off. § 87(2)(b) then

approaches PO LaMoriello from behind, who then turns around and begins pushing § 87(2)(b) toward a gate. Once § 87(2)(b) and PO LaMoriello are by the gate, the hands of both § 87(2)(b) and PO LaMoriello are up at face level. It appears that punches are being thrown but it is unclear where they land, if at all. After a brief exchange of punches, PO LaMoriello and § 87(2)(b) are wrestling and spinning around until they land on the ground. PO LaMoriello wrestles with § 87(2)(b) on the ground, while § 87(2)(b) is seen resisting by moving his body and trying to get up. PO Cheikhali and PO Voskoboynik assist PO LaMoriello with handcuffing § 87(2)(b).

Patrol Guide (P.G.) Procedure 203-11 directs officers to use the minimum amount of force necessary to effect an arrest (encl. A1-A2).

§ 87(2)(g)

**Allegation B – Force: PO Ali Cheikhali used physical force against § 87(2)(b)**

**Allegation C – Force: PO Ali Cheikhali struck § 87(2)(b) with a blunt instrument.**

Based on the video footage, the investigation determined that § 87(2)(b) resisted arrest and that PO Cheikhali kicked § 87(2)(b) and struck him in the head with handcuffs.

§ 87(2)(b) confirmed in his CCRB testimony, and § 87(2)(b) in his Notice of Claim filed with the City of New York, that officers kicked and struck § 87(2)(b) in the head with handcuffs.

§ 87(2)(g) PO Cheikhali's Line of Duty Injury Report states that PO Cheikhali sustained injuries as a result of § 87(2)(b) unexpected rapid movements while PO Cheikhali had metal handcuffs in his hand.

Cpt. Ordonez reported that § 87(2)(b) received five staples to the front of the head, three staples to the rear, and stitches to the front middle as a result of the incident.

§ 87(2)(g)

Officers are required to use the minimum amount of force necessary to effect an arrest. When taking a violent or resisting subject into custody, officers are to use appropriate tactics in a coordinated effort to overcome resistance. Patrol Guide Procedure § 203-11 (encl. A1-A2).

PO Cheikhali explained that § 87(2)(b) was resisting his arrest, and that he punched § 87(2)(b) in the face and torso to gain compliance. PO Cheikhali did not recall kicking § 87(2)(b) even after viewing the video footage and denied striking § 87(2)(b) with handcuffs, or seeing any objects in his hand.

§ 87(2)(g)

**Allegation D – Force: An officer struck § 87(2)(b) with a nightstick.**

§ 87(2)(b) alleged that a white male officer struck § 87(2)(b) with a nightstick. PO Tibbets, who is a white male, and PO Voskoboynik, who is a white female, acknowledged having their nightsticks out. However, both denied using it to strike § 87(2)(b). The video footage does not show an officer striking § 87(2)(b) with a nightstick.

§ 87(2)(g)

**Allegation E – Discourtesy: Sgt. Sean Claxton spoke discourteously to § 87(2)(b)**

§ 87(2)(b) alleged that Sgt. Claxton told him, “Get off the fucking block” or “Get the fuck out of here.” § 87(2)(b) who observed § 87(2)(b)'s interaction with officers from across the street, did not hear any officer use profanity when speaking to § 87(2)(b).

Sgt. Claxton denied making the discourteous statements toward § 87(2)(b) and using any profanity during the incident. PO LaMoriello and PO DeMarco did not recall if Sgt. Claxton used profanity. PO Cheikhali, PO Voskoboynik, PO Ko, PO Tibbets and Sgt. Diany did not hear Sgt. Claxton make the discourteous statements. PO Cheikhali and PO Ko did not hear any officer use profanity when dispersing the crowd. The video footage provided does not have audio.

§ 87(2)(g)

**Allegation F – Abuse of Authority: An officer threatened § 87(2)(b) and individuals with the use of force.**

§ 87(2)(b) alleged that a slim white male in his late 20s to early 30s, approximately 6’2” to 6’3” tall, pulled out a can of pepper spray, pointed it at the crowd and said, “Do you want us to pepper spray you?” § 87(2)(b) did not mention that he was threatened with pepper spray during his telephone statement § 87(2)(a) Gen.Mun. §50-11(a).

No officer remembered having any conversation about the use of pepper spray, and no officer acknowledged making such a threat. Moreover, the video footage does not show any officer with a can of pepper spray.

§ 87(2)(g)

**Allegation G – Force: Sgt. Sean Claxton used physical force against § 87(2)(b)**

§ 87(2)(b) alleged that Sgt. Claxton pulled his arm behind his back, pushed him against a gate and then punched him several times in his lower back before handcuffing him. § 87(2)(b) said he sustained a sore lip and shoulder. § 87(2)(b) told medical personnel that he was assaulted following an altercation with police officers.

§ 87(2)(b) observed an officer push § 87(2)(b) in the chest with two hands, causing § 87(2)(b) to hit a wall but did not see an officer punch § 87(2)(b).

Sgt. Claxton stated that after § 87(2)(b) failed to comply with multiple instructions to disperse, he grabbed § 87(2)(b) by his arm and § 87(2)(b) struck Sgt. Claxton’s hand and pushed Sgt. Claxton away. An impact officer grabbed § 87(2)(b) by his arm and placed him against an iron gate. Sgt. Claxton handcuffed § 87(2)(b). Sgt. Claxton denied punching, or seeing the impact officer punch § 87(2)(b) in his back.

PO LaMoriello did not see anyone arrested besides § 87(2)(b). PO Voskoboynik and PO Ko did not see § 87(2)(b)'s arrest. PO Cheikhali did not see Sgt. Claxton or any other officer punch a civilian. Sgt. Diany and PO Tibbets did not see Sgt. Claxton push § 87(2)(b) against a gate or punch him in his back.

The video footage does not show § 87(2)(b)'s arrest but it does show individuals going back to the scene after being dispersed.

§ 87(2)(g)

**Allegation H – Discourtesy: An officer spoke discourteously to § 87(2)(b)**

§ 87(2)(b) stated that when PO DeMarco escorted him to the van, an unidentified officer said, “Go to the other fucking side of the van.” § 87(2)(b) also stated that he dropped his hat while inside the van when he asked the officer to give him his hat he replied, “Here is your fucking hat.”

PO DeMarco did not remember escorting § 87(2)(b) to the police van. PO DeMarco did not know which officers were in the van and did not hear an officer make the aforementioned remarks. Sgt. Diany was near the police van but he did not hear any officer speak discourteously to § 87(2)(b).

PO LaMoriello, PO Voskoboynik, PO Ko, Sgt. Claxton, PO Tibbets and PO Cheikhali did not hear any officer make the aforementioned remarks to § 87(2)(b). Sgt. Claxton did not remember if there were any officers in the police van, and he did not know who transported § 87(2)(b) to the stationhouse.

The numbers on the police van are not visible on the video footage. The review of the Daily Vehicle Assignment Sheet did not yield any police vans that were operating during Tour 3. The Roll Call did not list any officers who were assigned to a police van. The SPRINT for the incident did not list any police vans at the location and a review of the radio message did not identify the officers assigned to the van.

§ 87(2)(g)

**Allegation I – Other: PO Ali Cheikhali intentionally made a false official statement in violation of Patrol Guide Procedure 203-08.**

PO Cheikhali acknowledged punching § 87(2)(b) in the face and torso with his fists, but denied having any object in his hand when doing so. PO Cheikhali sustained cuts to his hand as a result of the incident but did not remember how he sustained those cuts even after reviewing his Line of Duty Injury Report which states that his injuries were sustained by contact of his skin with handcuffs which were in his hand. (encl. H4).

After viewing the video footage, PO Cheikhali denied having any objects in his hand and said that he did not know what object the investigator was referring to. The video was played from 11:29:46 to 11:29:52 p.m. which showed PO Cheikhali striking § 87(2)(b) with handcuffs in the head. PO Cheikhali said that he saw himself trying to gain balance in the video. PO Cheikhali maintained that he did not strike § 87(2)(b) with handcuffs in the body or head.

Officers are prohibited from making false official statements. P. G. 203-08 (encl. A3); NYPD v. Lafemina, OATH Index No. 1168/91 (encl. A4-A9).

§ 87(2)(g)

Team: 4

Investigator: \_\_\_\_\_ Stanislav A. Sazonov 01/31/2014  
Signature Print Date

Supervisor: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature                      Print                      Date

Reviewer: \_\_\_\_\_  
Title/Signature                      Print                      Date